

Court No. - 29

Case :- WRIT - C No. - 29741 of 2019

Petitioner :- Janardan Singh

Respondent :- District Magistrate And 2 Others

Counsel for Petitioner :- G.K. Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri G.K. Srivastava, learned counsel for the petitioner and Sri Mahboob Ahmad, who has accepted notice on behalf of respondent no. 2.

The petitioner has preferred this petition against the demand of notice dated 31.5.2019 whereby the petitioner has been asked to deposit a sum of Rs.1,38,805/- as electricity dues plus compounding charges. The aforesaid notice of demand has already been challenged by the petitioner by means of Case No. 24 of 2019 before the Consumer Protection Forum District Kaushambi.

In view of the fact that the petitioner has availed the different remedy against the aforesaid demand and the same is drawing attention of the District Consumer Forum, we are not inclined to exercise our discretionary jurisdiction in the matter. Accordingly, petition is dismissed with liberty to the petitioner to challenge the final assessment, if advised by means of an appeal under Section 127 of the Electricity Act 2003.

Learned counsel for the petitioner submits that petitioner is ready and willing to pay the dues, if installments are fixed.

The petitioner for the purposes of installments may approach the Executive Engineer concerned, in accordance with Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. In case, any application for instalment is filed, it shall be considered in accordance with law most expeditiously.

The writ petition is **dismissed**.

Order Date :- 24.9.2019

Ishan